

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN THE PHILIPPINES

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in the Philippines, grounded in the environmental-clearance and constitutional system and documented campaigns

This guide uses the Philippine legal terms you will actually encounter (Environmental Compliance Certificate, writ of kalikasan, FPIC, citizen suit, and so on), each defined on first use and in the Glossary. It describes the national framework; local governments have their own powers and ordinances, so check locally.

A note on terms. Important terms are shown in **bold** the first time they appear, and each is defined in the **Glossary at the end of this guide.**

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INTRODUCTION & FRAMEWORK

Why This Matters

Community action directly determines project outcomes in the Philippines. Projects that clear every political and commercial hurdle still fall when opposition is organised, documented, and legally sharp. In 2023, the **Indigenous Cultural Communities** of Brooke's Point, Palawan, won a **writ of kalikasan** from the Supreme Court against a nickel mine — because they showed the company was operating on an **expired Environmental Compliance Certificate** and without the **consent** their ancestral domain required. Communities have used the courts to shut down illegal dumpsites, to force the clean-up of Manila Bay, and — as far back as 1993, in the famous case brought by the Oposa children — to assert the rights of **generations yet unborn**. Across the country, communities and public-interest groups have forced projects to be refused, halted, redesigned, or abandoned. These outcomes were not inevitable; communities made them happen.

But most communities don't know HOW to make opposition effective. They attend one public hearing, then give up. They assume "the DENR will refuse it" without building public pressure, filing objections, or going to court. They generate coverage without a strategy. They organise people and then lose them to burnout after four months.

This guide shows what actually works — in the Philippine system.

The Strategic Framework

Successful opposition campaigns follow the same basic pattern:

STEP 1: TARGET IDENTIFICATION

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STEP 2: DOCUMENTATION (proof of harm)

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STEP 3: LOCAL OPPOSITION BUILD (organised community)

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STEP 4: LEGAL CHALLENGES (writ of kalikasan / citizen suit)

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STEP 5: MEDIA STRATEGY (public visibility)

These operate SIMULTANEOUSLY (not sequentially)

Each step amplifies the others

Multi-tactic pressure compounds toward victory

Why the legal step matters so much here: the Philippines gives communities an unusually powerful set of levers. The **writ of kalikasan** — a special remedy filed directly with the **Supreme Court or Court of Appeals**, with **no filing fees** — can halt environmental damage that spans two or more cities or provinces, and can carry a **Temporary Environmental Protection Order (TEPO)**. Any Filipino may bring a **citizen suit** to enforce environmental laws — even "in representation of others, including minors or generations yet unborn." A lawsuit brought to harass or silence you can be thrown out as a **SLAPP**. And where a project touches an **ancestral domain**, the affected Indigenous community's **Free, Prior and Informed Consent (FPIC)** is required — the lever that stopped the Brooke's Point mine. No Philippine campaign should be planned without understanding these.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Before you invest time, money, and emotional energy, understand this:

First, a definition. This guide calls it a **system tilted toward approval** (sometimes called *institutional bias*). It does not mean anything illegal. It means the bodies that decide on a project lean toward approving it — because the government is pushing investment and infrastructure, because the developer's own study drives the assessment, or because clearances are rarely refused.

When these factors are present, opposition becomes harder. It does not become impossible. It becomes slower and more expensive and has a lower chance of stopping a project outright — but it still routinely wins protection orders, conditions, redesigns, and delay. Where there is genuine misconduct — bribery, graft, an undeclared interest, the offences under the **Anti-Graft and Corrupt Practices Act** — that is a different and more serious problem, covered in Section 11.

This is covered in Sections 10 and 11. Read them before committing resources.

HOW THE SYSTEM WORKS: WHO DECIDES, AND HOW

If you've never dealt with how projects get approved, read this section first. It explains, in plain terms, who holds power over a development in the Philippines, how a decision gets made, why the money so often points toward "yes," and the handful of words you'll need. Every term is defined here on first use. The rest of the guide assumes you know this map.

The levels of government — and what each one controls

The Philippines is a unitary state with strong **local government units (LGUs)**.

- **National government** — the **Department of Environment and Natural Resources (DENR)**, through its **Environmental Management Bureau (EMB)**, issues the **Environmental Compliance Certificate (ECC)**; its **Mines and Geosciences Bureau (MGB)** handles mining agreements; the **National Commission on Indigenous Peoples (NCIP)** handles **FPIC** over ancestral domains; and, for certain large natural-resource contracts, the **President** must approve.
- **Local government units** — the province, city, and municipality (through the **sanggunian**, the local council) and the **barangay** (the smallest unit). Under the **Local Government Code**, national agencies and proponents must **consult the LGU and obtain the sanggunian's approval** before a project that may cause environmental harm can proceed — a real and often decisive local veto point. LGUs can also pass ordinances (some provinces have banned open-pit mining).

So which body decides your project?

- A mine, power plant, big dam, reclamation, road, or airport → an **ECC from the DENR-EMB**, plus the **LGU consultation and sanggunian approval**, and (for mining) an agreement from the MGB and, for large ones, the President.
- Anything on an **ancestral domain** → the **FPIC** of the affected Indigenous community and a **Certificate of Precondition** from the **NCIP**, on top of the ECC.
- Anything in a **protected area** (a NIPAS/ENIPAS area) or a **key biodiversity area** → the protected-area management board's clearance as well.

The expert and consent bodies

- **The DENR-EMB and its EIA Review Committee** — screen the project and decide the **ECC**.
- **The NCIP** — runs the **FPIC** process and issues (or withholds) the **Certificate of Precondition**.
- **The sanggunian** — grants or withholds the local approval the Local Government Code requires.

How a decision is actually made — the clearance journey

For a project that may significantly affect the environment, the proponent must obtain an **ECC** under the **Philippine Environmental Impact Statement System (PD 1586)**. The process runs roughly:

1. **Screening** — is the project an **Environmentally Critical Project**, or in an **Environmentally Critical Area**? If so, a full **Environmental Impact Statement (EIS)** is required; if not, a lighter study or a **Certificate of Non-Coverage**.
2. **Scoping and public participation** — the impact study is prepared (by the proponent's accredited preparer), and there is a **public scoping and a public hearing/consultation** where affected people can raise objections **on the record**.
3. **Review** — the EMB's review committee evaluates the EIS.
4. **Decision** — the DENR-EMB **issues or denies the ECC**, with conditions.

Where an **ancestral domain** is affected, the **FPIC** process must be completed and the **NCIP Certificate of Precondition** obtained *before* the permit issues. And the **LGU consultation and sanggunian approval** are required. A **weak or misleading EIS, a defective public consultation, a missing FPIC, or a missing sanggunian approval** are among the strongest grounds to stop or delay a project.

The rulebook — the laws that decide the outcome

- **The 1987 Constitution** — the right of the people to a **balanced and healthful ecology** (Article II, Section 16), which the Supreme Court enforces; and the rule that large natural-resource **service contracts** with foreign companies must be signed by the **President** and reported to Congress (Article XII, Section 2).
- **PD 1586** — the Environmental Impact Statement System and the **ECC**.
- **The Indigenous Peoples' Rights Act (IPRA / RA 8371)** — ancestral domains and the requirement of **FPIC**.
- **The Local Government Code (RA 7160)** — the LGU consultation and *sanggunian* approval requirement.
- **The Mining Act (RA 7942)** and the **protected-areas law (NIPAS / ENIPAS)** — mining agreements and protected areas.
- **The Rules of Procedure for Environmental Cases** — the **writ of kalikasan**, the **writ of continuing mandamus**, the **citizen suit**, the **precautionary principle**, and the **SLAPP** defence.

Follow the money — why the system often leans toward "yes"

- **LGUs** compete hard for investment and the jobs and revenue a project brings, so there is often intense local pressure to approve.
- **National government** promotes mining, energy, and flagship infrastructure and frames projects as growth priorities.
- **Proponents** are often large companies, and — importantly — the **impact study is prepared by the proponent's own accredited consultant**, so it tends to read in the project's favour.
- ECC denials are relatively rare; most projects that reach a decision are cleared, with conditions.

None of this makes a decision inevitable. It explains why a decision rarely tips your way on its own — it takes organised, evidenced pressure.

The overseers — who watches the decision-makers

- **The Supreme Court and the Court of Appeals** — through the **writ of kalikasan**, the **writ of continuing mandamus**, and **citizen suits**, they can halt projects, order clean-up, and supervise compliance; and the **precautionary principle** tilts doubt toward the environment.
- **The Office of the Ombudsman** and the **Sandiganbayan** — investigate and try graft and corruption by officials (see Section 11).
- **The Commission on Audit (COA)** — audits government and exposes irregular spending.
- **The Commission on Human Rights (CHR)** — for rights-based complaints, including attacks on defenders.

QUICK REFERENCE: SUCCESS RATES BY STEP & COMBINATION

These ranges describe the general effectiveness of each tactic drawn from documented opposition campaigns. They are patterns, not guarantees. In the Philippines, the variable most likely to push a campaign above these ranges is a well-founded challenge on a real defect — a missing **FPIC** on an ancestral domain, a missing **sanggunian** approval, a defective **public consultation**, or an **expired or misleading ECC** — carried through the **writ of kalikasan** or a **citizen suit** (Step 4).

Individual Step Success Rates

Step	Success Rate	Timeline	Cost (PHP)	What "Success" Means
Documentation Only	5-10%	3-4 months	₱150,000	Project slowed, public awareness only
Opposition Only	15-20%	6-12 months	₱500,000	Public pressure, minor modifications
Legal Only	20-30%	6-24 months	₱0-800,000	Fast via the writ of kalikasan (no filing fees); strong if the defect is real
Media Only	10-15%	3-6 months	₱200,000	Public knows, but no action
Docs + Opposition	25-35%	12 months	₱650,000	Slowed, some modifications
Docs + Legal	30-40%	12-18 months	₱750,000	Stronger legal arguments
Opposition + Legal	35-45%	12-18 months	₱1,000,000	Political pressure strengthens the case
Opposition + Media	30-40%	9-12 months	₱650,000	Visibility creates political pressure
All 5 Steps Combined	60-75%	12-24 months	₱1,100,000	ECC set aside/refused/modified or project halted

Key insight: All five steps together = 3-4x more effective than any single step.

A note on legal cost: the writ of kalikasan has no filing fees, and a citizen suit can be brought by any Filipino — so the "Legal" figures are not a hard floor. Public-interest environmental lawyers and the Integrated Bar of the Philippines act for communities, often at no charge.

Effectiveness Visualization

SUCCESS PROBABILITY (ECC Set Aside/Refused/Modified/Project Halted)

CLEAN DECISION SCENARIO:

All 5 Steps Combined: 65-75%

Same chance as: a coin coming up heads twice (75%)

4 Steps Combined: 55-65%

Same chance as: a forecast of 60% rain being correct

3 Steps Combined: 45-55%

Same chance as: a single coin flip (50%)

2 Steps Combined:  30-40%

Same chance as: drawing a face card from a deck

Single Step: 5-20%

Same chance as: rolling a specific number on one die

WITH MODERATE TILT FACTORS:

(Strong pro-investment push, or a proponent-funded EIS)

All 5 Steps Combined: 40-45%

4 Steps Combined:  30-40%

3 Steps Combined: 20-30%

2 Steps Combined:  15-25%

Single Step: ■ 3-12%

WITH SEVERE TILT FACTORS:

(A national "flagship" project, proponent-only studies, heavy political backing)

All 5 Steps Combined: 25-30%

4 Steps Combined: 18-24%

3 Steps Combined: ■ 12-18%

2 Steps Combined: ■ 8-15%

Single Step: 2-8%

One important point: a single clear legal defect — most powerfully a missing **FPIC** on an ancestral domain, a missing **sanggunian** approval, an **expired ECC**, or a defective **public consultation** — can lead a court to issue a **writ of kalikasan** and halt a project even where the politics favour it, because it is applying a legal standard the agency cannot ignore. (A defect that is later cured can let the project resume, so an early win may need defending.)

Step Importance Ranking (When All Combined)

1. OPPOSITION BUILDING (Step 3) [REDACTED] 25%

Why: creates political pressure, visible to decision-makers, enables other steps

2. DOCUMENTATION (Step 2)	██████████	22%
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Why: provides ammunition for the writ, courts, and media; grounds opposition in facts

3. MEDIA STRATEGY (Step 5)	20%
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Why: makes opposition/legal/documentation visible, creates political cost

4. LEGAL CHALLENGES (Step 4) 18%

Why: the writ of kalikasan and citizen suit can halt a project – and hold the FPIC and ECC levers

Real insight: a large, organised, visible community that has also put well-argued objections on the record at the **public consultation** and, on an ancestral domain, insisted on genuine **FPIC**, is far more powerful than perfect documentation or a brilliant legal argument standing alone.

STEP 1: TARGET IDENTIFICATION

Time to complete: Weeks 1-4
Cost: ₱0
Outcome: A clear picture of what you're fighting, who decides, and when the decision is final

Core Questions You Must Answer

Before you organise a single person, answer these precisely.

Question 1: What Exactly Will Be Destroyed?

Not: "Environmental damage"
But: "The mine takes 300 hectares of forest inside the ancestral domain of [community], and threatens the watershed that supplies [town]."

Not: "Pollution"
But: "The plant will emit an estimated [X] of fine particles over the nearest homes of 1,500 people, in an area already exceeding the air-quality standard."

Not: "Community harm"
But: "The reclamation destroys the fishing grounds [number] families in [barangays] depend on."

Why this matters: specific harms are easier to document, litigate, and organise around. Vague opposition dies; specific opposition survives. Harm to an **ancestral domain**, a **protected area**, a **watershed**, or fishing grounds also opens a **specific legal front** (FPIC; the protected-area, mining, or fisheries laws; a writ of kalikasan).

Question 2: Who Decides?

You cannot pressure an abstraction. Identify the decision-maker precisely — it is usually one of these:

- **The DENR-EMB** — for the **ECC**.
- **The NCIP** — for the **FPIC** and the **Certificate of Precondition** (ancestral domains).
- **The *sanggunian*** (LGU council) — for the local consultation and approval.
- **The MGB / the President** — for the mining agreement or a large natural-resource contract.

Write it down concretely: "The DENR-EMB will decide the ECC after the public hearing on [date]. The project is on an ancestral domain, so FPIC and the NCIP Certificate of Precondition are required, and the *sanggunian* of [LGU] must approve."

Question 3: What Specific Action Stops It?

Not: "Stop the project"
But: "Persuade the DENR-EMB to deny the ECC, the community to withhold FPIC, or the *sanggunian* to refuse approval" — or, if refusal is unrealistic, "obtain strict conditions, real relocation and compensation, and a redesign."

Not: "Protect the environment"
But: "Show the **public consultation** was defective, the **EIS** misleading, the **FPIC** never genuinely obtained, or the **ECC expired**, and file a **writ of kalikasan** or a **citizen suit**."

Why this matters: you can demand something achievable. Vague demands are easy to ignore; specific ones create measurable pressure and, if the process is unlawful, become the ground for a court to act.

Question 4: When Is the Decision Final?

Timeline tells you how much time you have. Map every date: when the **EIS/scoping** is out, the **public hearing**, the FPIC assembly, the *sanggunian* session, and the **ECC decision**. Don't wait: object during the public consultation and the FPIC process, and be ready to move quickly. A **writ of kalikasan** can be filed at any point where there is threatened or actual environmental damage of the required magnitude — you do not have to wait for a "final" decision.

Question 5: Are There Documented Financial or Policy Pressures?

This is the tilted-system assessment question. Know it BEFORE you organise:
- Is the project a declared **flagship** or priority investment, hardening political backing?
- Is the **EIS** prepared and paid for by the proponent's own consultant only?

- Does the LGU depend on the project for jobs, revenue, or mining **royalties**?
- Is the proponent a large company with deep resources for studies, lawyers, and appeals?
- Has the project already begun works before the **ECC** or **FPIC** — seeking to present a *fait accompli*?

Why this matters: if strong "flagship project" backing or proponent-controlled studies are present, opposition must overcome different barriers (Section 10). It doesn't mean opposition can't work — it means realistic expectations and, often, a focus on the **FPIC**, the **sanggunian** approval, the **public consultation**, and the **ECC** defects, on conditions, and on the **writ of kalikasan**, rather than a straight political refusal.

STEP 2: DOCUMENTATION — HOW TO BUILD AN UNASSAILABLE CASE

- Time to complete:** Months 1-4
- Cost:** ₱150,000-250,000 (PHP)
- Outcome:** Three polished reports (30+ pages total) showing specific, quantified harms
- Success Rate (Documentation Alone):** 5-10%
- Success Rate (Documentation + Opposition):** 25-35%
- Success Rate (Documentation + Opposition + Legal + Media):** 60-75%

The Three Documentation Layers

Documentation turns vague opposition ("This is bad") into undeniable evidence ("This specific harm will occur to these specific people/places at these specific costs"). Success comes from three layers working together.

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

- What it is:** documentation of existing conditions BEFORE the project begins — including who lives on and uses the land, and how.
- Why it matters:** proponents claim "the land is idle" or "already degraded." Baseline documentation proves what — and who — was there, and it cannot be reconstructed later.
- Documented case — the Indigenous communities of Brooke's Point and the Palawan nickel mine**

A nickel-mining operation was pressing ahead on land within the **ancestral domain** of the Indigenous Cultural Communities of Brooke's Point, in Palawan, near the Mt. Mantalingahan Protected Landscape. Its backers treated the hills as an ore body. The community made that impossible. They documented — and asserted — the reality on the ground: that the operation sat inside their ancestral domain and threatened its forests and waters, and, crucially, that the company had **no valid consent and no valid clearance** to be there.

It changed the outcome. In August 2023, the **Supreme Court en banc** granted the community's petition for a **writ of kalikasan**, finding two decisive compliance gaps the community had documented: the company was operating on an **expired Environmental Compliance Certificate**, and it lacked the **Certificate of Precondition from the NCIP** — meaning the **FPIC** the ancestral domain required had not been validly obtained. Because the operation spanned municipalities and threatened the ancestral domain, the Court issued the writ. The community's documented record — of where the operation was, and of what it lacked — was the thing the Court acted on.
- Why it matters for you:** the Brooke's Point communities' documentation — the location inside the ancestral domain, the expired ECC, the missing FPIC — was decisive. Documenting existing conditions, including who lives there, what rights they hold, and what the proponent lacks, is the foundation of everything that follows.

Building your own baseline (typical process). Document existing conditions before the project starts, because a proponent will claim the land is "idle" and baseline cannot be reconstructed later. A workable approach: surveys across a season cycle of the project area plus reference sites; a species and habitat inventory with GPS locations, flagging anything protected under the wildlife or protected-area laws that the proponent's **EIS** omitted; a record of who occupies and uses the land — farming, fishing, gathering, sacred sites — and whether it lies within an **ancestral domain** (the basis of an **FPIC** requirement); proximity to any protected area, key biodiversity area, or watershed; and water and air baselines (quality and seasonal variation). Just as important, **check the paper the proponent actually holds:** is the **ECC** valid and current, was **FPIC** genuinely obtained, is there a **Certificate of Precondition**, did the **sanggunian** approve? Typical cost is around ₱150,000-200,000 for a technical consultant/ecologist, GPS, and testing — reducible with knowledgeable community members, university researchers, and naturalists. Dated, same-spot photographs and geo-referenced maps make it credible.

LAYER 2: IMPACT ANALYSIS

- What it is:** detailed analysis of what specific harms will occur, based on the project description plus your baseline.
- Why it matters:** it shows not just "something bad" but "specifically THIS BAD in THIS WAY" — and it maps directly onto what the **EIS** must properly assess and what the permits must show.

Use the proponent's own words and the clearance rules. Powerful, documentable weak points in Philippine clearances include:

- **A misleading or incomplete EIS.** The **EIS** must genuinely assess the project's significant impacts and alternatives. Studies that understate or omit impacts have been challenged and used to attack a clearance.
- **A defective public consultation.** The **public hearing/consultation** must be genuinely held, with the study available and objections recorded. A skipped or stage-managed consultation is a strong, specific defect.
- **Missing or defective FPIC / missing *sanggunian* approval / an expired ECC.** On an **ancestral domain**, genuine **FPIC** and the NCIP **Certificate of Precondition** are required; every covered project needs **sanggunian** approval; and an operation running on an **expired ECC** is unlawful — exactly the gaps that produced the writ of kalikasan at Brooke's Point.

Convert each of the proponent's admissions ("temporary disturbance," "limited clearing") into a quantified prediction against your baseline.

Outcome (illustrative): an **EIS** or **consultation** found defective, an **FPIC** or **sanggunian** approval shown to be missing, or an **expired ECC**, can lead a court to issue a **writ of kalikasan** or TEPO — halting the project, or adding months or years.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

What it is: quantification of human-health and economic costs to the community.

Why it matters: decision-makers and the public respond to human cost. "X hectares affected" matters less than "an estimated 45 additional respiratory cases a year, and ₱X of health-system cost" — or "the fishing and farming that sustain 200 families destroyed."

Method: use recognised air-quality or water modelling and the public-health literature to translate emissions or land loss into health and livelihood outcomes, then attach costs — additional respiratory and cardiovascular cases, lost farming, fishing, and gathering income, and total annual and lifetime cost for the affected population.

Outcome (illustrative): an independent health-and-livelihood analysis can move an LGU, feed the court case, and force conditions the original design lacked.

How to Structure Your Documentation

Phase 1: Baseline Conditions (Months 1-2)

Engage a technical consultant or ecologist (or use knowledgeable community members, university researchers, and naturalists); document conditions AND human occupation, use, ancestral-domain status, and sacred sites — and check the proponent's permits. **Deliverable:** a 20-30 page baseline report with species/habitat inventory, a record of use and rights, water/air data, dated photographs, geo-referenced maps, and a permit-status check.

Phase 2: Impact Analysis (Months 2-3)

Obtain the **EIS** and the ECC/permit file (request them from the DENR-EMB and NCIP; the **FOI** mechanism can help); identify specific impacts; test the study and the permits against the rules (completeness, public consultation, FPIC, *sanggunian* approval, ECC validity, protected areas). **Deliverable:** a 20-30 page impact analysis with quantified predicted impacts, comparison to baseline, and the proponent's own admissions quoted back.

Phase 3: Health/Economic Analysis (Months 3-4)

Identify affected populations; estimate health and livelihood impacts and costs. **Deliverable:** a 15-20 page report written for the public and press.

Common Documentation Pitfalls (What Fails)

- **Waiting for perfect data.** Documented data beats perfect data that arrives after the ECC.
- **Only environmental data.** Add health, livelihood, and human-occupation impacts — the arguments that move decision-makers, the courts, and the public.
- **No independent check.** A report the agency can dismiss as "activist material" is far stronger after an independent expert or a university reviews it.
- **Ignoring the paperwork.** The proponent's **EIS** is your best source; quote it against itself. And check the **permits** — an expired ECC or a missing FPIC is a gift.

Documentation Budget Breakdown (PHP)

Item	Cost	Notes
Technical consultant / ecologist (baseline + species ID)	₱120,000	Wildlife/protected-species and habitat survey
GPS / survey equipment	₱15,000	Mapping/documentation
Water/air testing	₱25,000	Sampling across seasons
Independent / university expert review	₱20,000	Credibility

Printing/FOI/translation	₱10,000	Local-language copies for decision-makers
TOTAL	₱190,000	Reducible with university partners and community members

STEP 3: BUILDING LOCAL OPPOSITION — HOW TO ORGANISE COMMUNITIES THAT HOLD

Time to complete: Months 2-6 (foundation), 6-12 (sustained)
Cost: ~₱500,000 (PHP) for a full year
Outcome: 50-100 core people, 5-10 organisations, sustained organisation

Success Rate (Opposition Alone): 15-20%
Success Rate (Opposition + Documentation + Legal + Media): 60-75%

Critical Insight About Organising

Most opposition campaigns fail not because they can't build opposition, but because opposition burns out after 4-8 months. You need structures that prevent it.

PHASE 1: FOUNDATION (Months 1-2)

Goal: a core group of 15-20 motivated people and a clear picture of their concerns.

Step 1a: One-to-One Conversations

People don't join movements from pamphlets; they join from relationships. Identify the 15-20 people most affected or interested. **Talk to** each in person for an hour. Ask: "What's your biggest concern about this project?" Listen — don't pitch. Ask what they'd be willing to do. Each person has a different concern (land, water, fishing, health, a sacred site, a way of life). Opposition organised around each shared concern is stronger than one generic message.

Step 1b: Affinity Groups by Concern

Organise small groups (3-8 people) around a shared concern, not around "opposition":

- **Land/livelihood group** — farming, fishing, gathering, displacement and relocation
- **Water group** — the river, the watershed, groundwater, the sea, contamination
- **Health group** — air quality, dust, water-borne disease
- **Rights group** — **ancestral domain** and **FPIC**, sacred sites, protected areas

Each group meets regularly and works out how opposition serves *their* interest, coordinating while keeping its own framing.

Step 1c: Use the Barangay, the Sanggunian, and Register a People's Organisation

Three vehicles matter. First, **resolutions** — a **barangay** resolution, and above all a **sanggunian** resolution, against the project carry real weight, because the LGU's approval is legally required. Second, on an **ancestral domain**, the community's own decision-making and its right to **FPIC** are decisive — a properly recorded refusal of consent is one of the strongest things you can produce. Third, a **registered people's organisation (PO) or NGO** can speak for the community, receive donations, and file a **citizen suit** or a **writ of kalikasan**; partner with established local organisations, church groups, and a public-interest environmental law group.

PHASE 2: PUBLIC LAUNCH (Months 2-3)

Goal: announce opposition to the public, the media, and decision-makers.

Step 2a: Public Meeting (community assembly / *pulong-pulong*)

Hold a community assembly where people set out their concerns to themselves, to the barangay and municipal officials, and to press. A serious, informational meeting carries weight. Typical shape: welcome → project explanation → community concerns (each person a few minutes) → expert Q&A (an ecologist, a health voice, a lawyer) → next steps.

Step 2b: Opposition Materials (Factsheets)

One page, in the **local language**. Decision-makers and neighbours won't read 30 pages; one page gets read. Structure: a headline stating the problem → quick quantified facts → the specific impact → **what you're asking for** → the evidence base → contact/resources. Print widely; distribute at markets, the barangay hall, churches, health centres; post a digital version. Cost: ~₱10,000.

Step 2c: The Public Consultation, FPIC, and Resolutions (the decisive record)

Two things matter most here. First, turn people out to **speak and file written objections at the DENR-EMB public consultation** (and demand a proper one, in the local language, if it is skipped or relocated), each raising real grounds — a misleading **EIS**, harm to a watershed or protected area, ignored displacement. Second, secure the **records that carry legal weight**: on an ancestral domain,

ensure the **FPIC** process is genuine and, if the community objects, that its **refusal of consent is properly recorded**; and press the **barangay and sanggunian to pass resolutions** against the project. Together these build a record the courts take seriously. Cost: ~P3,000.

Step 2d: Media Coverage at Launch

Release data + objections + resolutions = a story. (Full press-release example is in Section 9, 9G.) Contact reporters, then send the study. Expect 1-3 local stories.

PHASE 3: COALITION EXPANSION (Months 3-6)

Goal: grow from 20 core people to 50+ core plus 5-10 organisations.

Step 3a: Organisation Outreach

Approach environmental and rights organisations — public-interest environmental law groups (such as the Environmental Legal Assistance Center and the Legal Rights and Natural Resources Center), NGOs and networks, church and faith groups (which carry real weight in Philippine communities), university research centres, Indigenous-peoples' and fisherfolk organisations, farmers' groups, and the Integrated Bar of the Philippines — plus tourism operators and businesses that lose from the project. Research each; contact the right person; explain how opposition serves *their* aims; make a specific, tailored ask.

- Tailored asks:
- **An environmental law group / the IBP:** "We need help with a **writ of kalikasan** or a **citizen suit** — can you assist?"
 - **A university group:** "Would your researchers assess the watershed or health impacts independently?"
 - **An Indigenous-peoples' organisation:** "Help us ensure the **FPIC** process is genuine and, if the community objects, that its refusal is recorded."
 - **Church / fisherfolk / farmers:** "This takes the land and waters we depend on — will you object and speak at the consultation?"

Step 3b: Coalition Agreements (Written)

A written agreement — who's in, how decisions are made, meeting frequency, the public message, who may speak for the coalition, conflict resolution, money, and an exit clause — prevents later conflict. Consensus is stronger but slower; voting is faster but can fracture.

Step 3c: Coordinated Public Work

Assign leadership by strength: environmental analysis to the NGO/university; ancestral-domain and FPIC to the Indigenous organisation and the community's own leaders; livelihood to the farmers'/fisherfolk groups; media to whoever has the contacts; the legal track to the law group and the registered PO. Sequence activities so each builds momentum (coalition launch → data release → resolutions and FPIC record → public consultation).

PHASE 4: SUSTAINED PRESSURE (Months 6-12)

Goal: maintain organised opposition across a 12+ month timeline.

Step 4a: Public Demonstrations (rallies / *lakbayan*)

Regular, same time and place, growing attendance — outside the municipal or provincial capitol, the DENR office, or at the site. Handle logistics: any required permit, marshals, accessibility, and a sound system for large gatherings. Momentum matters: "50 gather" becomes "gathering grows to 500."

Step 4b: Media Campaign (Ongoing)

Monthly rhythm: week 1 a release tied to an event/data; weeks 2-3 social media 3x/week; week 4 a reporter check-in. Rotate themes (resolutions passed → expert finding → coalition growth → rally → writ filed).

Step 4c: Common Opposition Failure Points (How to Prevent)

- Failure Point 1: Burnout (Months 4-8).** Prevent it: regular (not constant) meetings; celebrate milestones; fund one part-time coordinator so volunteers don't carry logistics; schedule breaks; keep a public progress tracker. Campaigns that bring in a part-time coordinator when founders tire tend to last for years; those that don't often collapse around month six.
- Failure Point 2: Coalition Conflict.** Prevent it with a written agreement and decision process, a clear escalation path (discuss → mediator), an explicit exit clause, and rotating leadership. Respect that Indigenous communities decide by their own processes — and be alert to proponents trying to split a community by co-opting some leaders or staging a "consent"; keep decisions transparent and collective.
- Failure Point 3: Competing Funding.** Grants with conflicting conditions can pull groups off shared work. Coordinate grants up front and agree no group commits coalition resources without a coalition decision.
- Failure Point 4: No Clear Wins.** Name milestones as victories (resolutions passed, FPIC refusal recorded, 500 objections filed, a large

rally, the writ granted) and publicise cumulative progress.

Opposition Building Budget: Year-Long Campaign (PHP)

Item	Cost
Factsheet printing (local language)	₱18,000
Website/phone/data (annual)	₱12,000
Meeting / venue costs	₱25,000
Outreach travel (often remote islands/uplands)	₱80,000
Objection/resolution materials	₱4,000
Demonstration supplies (banners, sound)	₱35,000
Coalition meeting costs	₱25,000
Part-time coordinator honorarium (12 months)	₱240,000
Social-media / content (part-time, 3 months)	₱60,000
Fundraiser/event costs	₱25,000
TOTAL	₱524,000

Funding the campaign. Money typically comes from four places: individual donations (local collections and online fundraisers, plus dedicated legal-cost appeals); grants from environmental and rights funders (long lead times — apply early); benefit events; and in-kind support from coalition organisations (expertise, meeting space, volunteer time). A registered PO or NGO can receive donations and, where eligible, grants. Aim to raise half the budget by month 6 and the rest by month 12. **Reductions:** use a volunteer coordinator, or run a shorter 6-month campaign, to cut ~₱240,000; and public-interest law groups and the IBP often act at no charge.

STEP 4: LEGAL CHALLENGES — THE WRIT OF KALIKASAN, THE CITIZEN SUIT, AND CONSENT

Time to complete: 3-24 months (depends on track)
Cost: ₱0-800,000 (PHP; the writ of kalikasan has no filing fees, and a citizen suit can be brought by any Filipino)
Outcome: a project halted, a clearance set aside, conditions, or a project shelved

Representation impact:

- Experienced environmental lawyers or a public-interest law group: 35-45% favourable-outcome likelihood
- General or less specialised representation: 25-35%
- Self-representation: 5-15%

- **Two key advantages:** the **writ of kalikasan** has **no filing fees** and can be filed directly with the Supreme Court or Court of Appeals; and the **citizen suit** lets any Filipino sue to enforce environmental laws. Public-interest environmental lawyers and the Integrated Bar of the Philippines act for communities, often at no charge.

Success Rate (Legal Only): 20-30%
Success Rate (Legal + Opposition + Media): 60-70%

Philippine legal strategy has three tracks, and the country's special environmental remedies make it distinctive.

TRACK 1: PARTICIPATION AND THE PAPER TRAIL (the front door)

Most fights are shaped here, on the record, before any court is involved.

- **Object at the DENR-EMB public consultation.** Speak, and file written objections raising real **legal grounds** — a misleading **EIS**, harm to a watershed or protected area, ignored displacement, a consultation not held in the local language.
- **Make FPIC genuine — or record the refusal.** On an **ancestral domain**, insist that the **FPIC** process follows the rules, is free of manipulation, and — if the community objects — that its **refusal of consent** is properly recorded. Watch for staged "consent."
- **Get sanggunian and barangay resolutions.** Because the LGU's approval is legally required, formal **resolutions** against the project carry real weight.
- **Use FOI and requests.** Obtain the **EIS**, the ECC and its conditions, the FPIC records, and the *sanggunian* file — through requests to the DENR-EMB and NCIP and the **Freedom of Information** mechanism. This turns a closed process into a documented one, and often surfaces the defect that wins the case (an expired ECC, a missing precondition).

Why this track matters: filing well — specific, on time, grounded in the law and the evidence — plus the FOI paper trail and the FPIC and resolution record, often does more than any amount of noise, and it builds the case you'll need for Tracks 2 and 3.

TRACK 2: CONSENT, PERMITS, AND THE IMPACT-STUDY LEVERS (the strongest cards)

Several grounds make this the most powerful legal tool available to Philippine communities.

1. FPIC and the ancestral domain. Where a project touches an **ancestral domain**, the affected Indigenous community's genuine **FPIC** and the NCIP **Certificate of Precondition** are required. Their absence — or a manipulated process — is a strong, specific ground, and is what produced the writ of kalikasan at **Brooke's Point**.

2. A missing sanggunian approval or defective LGU consultation. Under the Local Government Code, a covered project needs the LGU's consultation and the **sanggunian's** approval; without it, the project is vulnerable.

3. An expired or misleading ECC, or a defective consultation. An operation running on an **expired ECC**, an **EIS** that omits or understates impacts, or a **public consultation** that was skipped or stage-managed, are strong grounds — and, where the harm spans two or more cities or provinces, grounds for a **writ of kalikasan**.

4. A protected area, or a missing Presidential signature. A project in a **protected area** without proper clearance, or a large natural-resource **service contract** not signed by the President as the Constitution requires, is a strong ground (the courts have voided such a contract in a protected seascape).

The precautionary principle. In Philippine environmental cases, where there is scientific doubt about serious or irreversible harm, the court leans **toward protecting the environment** — an advantage when the science is contested.

TRACK 3: THE WRIT OF KALIKASAN, THE CITIZEN SUIT, AND CONTINUING MANDAMUS

The Philippines offers special remedies that exist for exactly these fights:

- **The writ of kalikasan** — filed directly with the **Supreme Court or the Court of Appeals**, with **no filing fees**, for environmental damage of a magnitude that prejudices the life, health, or property of inhabitants in **two or more cities or provinces**. The court can issue a **TEPO** and, in judgment, order a cease-and-desist, rehabilitation, and continuing supervision.
- **The citizen suit** — any Filipino, "in representation of others, including minors or generations yet unborn," may sue to enforce environmental laws; standing is liberal, so you need not show direct personal injury.
- **The writ of continuing mandamus** — compels a government agency to perform a duty it has neglected, and keeps the case under the court's supervision until it is done (used to compel the Manila Bay clean-up).
- **The SLAPP defence** — if the proponent sues *you* to harass, vex, or silence your enforcement of environmental rights, you can plead the case is a **Strategic Lawsuit Against Public Participation** and have it dismissed after a summary hearing.

Be realistic about two things. First, a **writ of kalikasan** requires environmental harm of the **required magnitude** (spanning two or more cities/provinces) — a purely local nuisance may fit a different remedy. Second, and importantly, **winning the writ is not always the end**: courts have granted relief that local agencies were slow to implement, and a defect that is later **cured** (a renewed ECC, a fresh FPIC) can let a project resume. So keep opposition and media pressure alive alongside the case, and use **continuing mandamus** to hold agencies to a ruling.

Legal Strategy Decision Tree

START: Is a public consultation, an FPIC process, or an ECC in process or issued?

— IN PROCESS → Object + make FPIC genuine + push resolutions NOW (Track 1). Use FOI.

- ISSUED / OPERATING → Check for a defect (expired ECC? missing FPIC/precondition? no sanggunian approval? protected area?).

Q1: What kind of defect / harm is it?

- └ Harm spans TWO OR MORE cities/provinces (watershed, coast, airshed, ancestral domain)

- WRIT OF KALIKASAN (Supreme Court / Court of Appeals; no filing fees; seek a TEP0).

- └ An agency is neglecting a clear legal duty (e.g. to enforce, to clean up)

→ WRIT OF CONTINUING MANDAMUS.

- A more local violation of an environmental law → CITIZEN SUIT (any Filipino may file).

- ↳ No real defect (lawful process, you just disagree) → focus on opposition + media.

Q2: Are you being SUED to silence you?

- ↳ YES → Plead SLAPP as a defence (summary hearing) and seek dismissal + a counterclaim.

Q3: Budget?

- └ P0 → Citizen suit / writ of kalikasan (no filing fees) with a public-interest law group or the IBP.

- PO-300K → Writ of kalikasan / citizen suit with an environmental lawyer + expert evidence.

- ↳ P300-800K → Full case + expert witnesses, combined with opposition + media.

Q4: Are works imminent?

└ YES → Seek a TEPO / cease-and-desist to halt works – and plan for a possible resumption if a curable defect is fixed; use continuing mandamus to hold agencies to the ruling.

└ N0 → The case proceeds on the normal timetable.

RECOMMENDED PATHS

- Path A – Clear defect + wide harm: writ of kalikasan (+ TEPO) + Track 1 record + FOI file + media. Highest ceiling, no filing fees.
- Path B – Arguable but not clear-cut: build opposition + media; take advice; litigate if a defect crystallises.
- Path C – No legal defect: don't litigate. Win it politically, on the record, and in the press.

Litigation Success Factors

Litigation succeeds when **combined** with the other steps:

- Litigation alone: 20-30%
- Litigation + opposition: 35-45%
- Litigation + opposition + media: 50-70%
- A clear defect — a missing **FPIC**, a missing **sanggunian** approval, an **expired ECC**, or a defective **consultation** — can exceed these (as at Brooke's Point), though a cured defect may let the project resume.

A court that sees a genuine legal defect, plus visible organised opposition, plus press coverage, treats the matter as serious.

What to Avoid: Legal Failures

- **Litigating instead of organising.** A lone technical point with no visible opposition reads as a niche dispute. Build opposition; litigate with it visible.
- **Filing the wrong remedy.** A purely local harm may not meet the **writ of kalikasan's** magnitude threshold; a neglected agency duty fits **continuing mandamus**; a local violation fits a **citizen suit**. Match the remedy to the facts.
- **Missing the paper defect.** The strongest Philippine cases often turn on a permit gap (an expired ECC, a missing precondition) — check the paperwork first.
- **Weak grounds.** "This project is harmful" is an opinion, not a legal ground. "The company operated on an expired ECC without the FPIC the ancestral domain required" is a ground a court can act on.

STEP 5: MEDIA STRATEGY — HOW PRESS COVERAGE SHIFTS OUTCOMES

Time to complete: the full 12-month campaign
Cost: ~₱200,000 (PHP) for trained spokespeople + ongoing support
Outcome: regular coverage reaching a large audience, political pressure on decision-makers

Success Rate (Media Only): 10-15%
Success Rate (Media + Opposition + Documentation + Legal): 60-75%

The Philippines has a large national press, a strong investigative-journalism tradition, church and community radio, and heavy social-media use, that cover exactly these fights — and a record of that coverage shifting outcomes. The Palawan mining cases and the Manila Bay clean-up drew sustained national attention, which raised the political cost of pushing projects through.

How Journalists Actually Work

What reporters care about, in order: (1) **news** (something new happened), (2) **consequence** (someone is affected), (3) **timeliness** (it's happening now), (4) **conflict** (a real dispute), (5) **new information**. What they don't care about: your opinion, how angry you are, vague statements, or meetings with no hook.

The Newsworthiness Formula

NEWS = DATA + CONSEQUENCE + TIMELINESS + NEW INFORMATION

- **Bad:** "Residents oppose the project." (no data, no specific consequence, nothing new) → ignored.
- **Good:** "FOI documents show the company's ECC expired two years ago and it never obtained FPIC; the community has filed a writ of kalikasan; the affected watershed serves three towns." → covered.

The difference is roughly a 4-5x change in the likelihood of coverage.

Know the Outlets That Cover This Beat

- **Community and church radio**, and the **regional press** — the audience that reaches your barangay, municipal, and provincial officials.
- **National outlets** — the *Philippine Daily Inquirer*, *Rappler*, *ABS-CBN*, *GMA*, and *The Philippine Star* — for projects with wider significance.
- **Investigative and specialist outlets** — the **Philippine Center for Investigative Journalism (PCIJ)**, **Mongabay-**

- **Philippines**, and **Bulatlat** — for deeper reporting on clearances, mining, and rights.
- International outlets for landmark cases.

Building Reporter Relationships (The Key)

Reporters don't ring campaigners for comment; campaigners ring reporters with tips. Identify 5-10 local, regional, and specialist reporters (environment, mining, local-government beats). **Contact** them first: "I saw your piece on [similar story]. We've got a similar situation in [place] and I think your readers should know." Then keep the relationship warm over months — a relevant article, an FOI document, a milestone — so that when the big story lands, they already know you.

Sample Media Timeline

- Month 1: build relationships (contact five reporters)
- Month 2: first story (public-consultation objections / resolutions passed)
- Month 3: press event releasing the survey/FOI findings; expert available
- Month 4: coalition announcement
- Month 5: rally coverage
- Month 6: decision-date coverage

Real Media Dynamics (Philippine grounding)

- **Coverage plus mobilisation shifts outcomes:** the Palawan mining fights combined community organising, the FPIC and permit record, and the writ of kalikasan with sustained national coverage — raising the political cost.
- **FOI and permit documents make stories:** a disclosure that contradicts the proponent's claims — an expired ECC, a missing precondition, a stage-managed consultation — is a gift to a reporter and a court.
- **Independent evidence beats the proponent's study:** independent ecological, hydrological, or health analysis that contradicts an optimistic **EIS** lets the press write "experts dispute the proponent's figures," and decision-makers take notice.

Media Measurement

Track cumulative stories and reach month over month. **Success indicators:** regular (at least monthly) coverage that carries your message and specific data, and visible decision-maker response. **Failure indicators:** no coverage for 2+ months, superficial coverage that drops your argument, or no response from decision-makers.

SECTION 8: EMAILS & LETTERS YOU CAN COPY

These are ready-to-use messages. Adapt the bracketed parts and send them. Keep them short, specific, and grounded in the law and the evidence — that is what gets read and acted on. The **FOI request (8E)** and the press release (8G) are among the highest-leverage messages here.

8A. Email to a reporter (story pitch)

Subject: Story tip: [specific finding] – [the DENR / LGU] decides [date]

Dear [Reporter],

I follow your coverage of [beat / recent story]. We have something in [place] your readers should know about, and there's a clear news hook.

In one line: [FOI documents / the community's recorded position / an independent survey] show [quantified finding – e.g. "the company's ECC expired two years ago and it never obtained FPIC"], and [the DENR-EMB / the sanggunian] decides on [date].

Why it's newsworthy: it's new (just obtained), specific (affects [# people / hectares / an Indigenous community]), and time-sensitive (decision [date]).

I can share the full report and FOI documents and connect you with [one named expert] for an interview. Would a quick call this week work?

Regards,

[Name] – [Organisation] – [phone] – [email]

8B. Letter to the DENR-EMB, the NCIP, or the LGU (mayor/governor/sanggunian)

Subject: [Deny / attach strict conditions to] [project] – ECC application [ref]

To [the EMB Regional Director / the NCIP / the Mayor / the Governor / the Sangguniang Bayan/Panlalawigan],

I am a resident of [place] writing about the [project], on which a decision (the ECC / FPIC / the sanggunian's approval) is expected around [date].

The concern, briefly: [one or two specific grounds – e.g. "the project sits inside the ancestral domain of [community] without valid FPIC or a Certificate of Precondition, and the sanggunian has not approved it"].

I am asking you to [specific, achievable action – e.g. "deny the ECC," or "require genuine FPIC, sanggunian approval, strict conditions, and a redesign"].

[If true:] The affected community has recorded its objection [and refusal of consent]; the barangay of [name] has passed a resolution against the project; [#] residents filed objections at the public consultation.

I would welcome a meeting and can share our full evidence.

Respectfully,
[Name], [address], [phone], [email]

8C. Objection at the public consultation / FPIC refusal / sanggunian resolution

PART A – WRITTEN OBJECTION AT THE PUBLIC CONSULTATION

To: [the DENR-EMB conducting the public consultation on [project]]

Objection to the [project]. Consultation held [date].

1. Who I am: [name], [barangay], [interest].
 2. Grounds (with evidence):
 - a. [Ancestral domain / FPIC] – the project affects the ancestral domain of [community]; genuine FPIC and the NCIP Certificate of Precondition have not been obtained. (Attach.)
 - b. [Misleading EIS] – the EIS omits [impact], understates [impact], and [ignores / contradicts] the ground reality documented here.
 - c. [Defective process / permits] – the consultation was not held in [language]; the ECC is expired; the sanggunian has not approved.
 3. What I ask: that the ECC be DENIED; alternatively, [strict conditions and a redesign].
- [Name] – [contact] – Attachments: [baseline / impact / health report]

PART B – RECORD OF REFUSAL / RESOLUTION (ancestral domain and LGU)

"The [community], through its own decision-making, records that it does NOT give its Free, Prior and Informed Consent to the [project], for the following reasons: [rights / livelihood / sacred sites / environment]." And/or: "The Sangguniang [Barangay/Bayan] of [name] resolves to OBJECT to and NOT approve the [project]. Adopted [date]."

8D. Coalition outreach email (to an organisation)

Subject: [Organisation] + [project] – a specific ask that fits your work

Dear [Name],

I'm [name] with [organisation] in [place]. We're working on [project], which [one-line stake]. I'm getting in touch because this connects directly to [organisation]'s work on [their aim].

We're not asking you to adopt our whole campaign – just one concrete thing that serves your aims: [tailored ask – e.g. "help us prepare a writ of kalikasan or a citizen suit," or "help ensure the FPIC process is genuine and record any refusal," or "have your researchers assess the watershed impacts independently"].

If helpful, I can send a one-page brief and arrange a short call.

Thanks for considering it,
[Name] – [Organisation] – [contact]

8E. Freedom of Information (FOI) request (the transparency tool)

To: The FOI Receiving Officer, [DENR-EMB / NCIP / the LGU], [office]
(You can also file through the eFOI portal, foi.gov.ph, for executive agencies.)

Request for information under the Freedom of Information program (E.O. No. 2,
s. 2016)

Please provide the following records concerning [project] (ref [ref]):

1. The Environmental Impact Statement and the ECC, with its conditions and validity/expiry dates.
2. The minutes/records of the public scoping and public consultation, and the objections received.
3. The FPIC records and the NCIP Certificate of Precondition (if any).
4. The sanggunian resolution/approval (or confirmation none exists).
5. All correspondence between [the agency] and [the proponent], [dates].

If any record is exempt, please cite the specific exception and release the rest.

[Name] – [address] – [date]

8F. Legal challenge — writ of kalikasan / citizen suit (match the remedy)

NOTE: Route by the facts. Wide harm (two or more cities/provinces) → WRIT OF KALIKASAN (Supreme Court or Court of Appeals; NO filing fees; seek a TEPO). An agency neglecting a clear duty → WRIT OF CONTINUING MANDAMUS. A more local violation → CITIZEN SUIT (any Filipino may file). If you are sued to be silenced → plead SLAPP. Contact a public-interest environmental lawyer or the IBP.

[PETITION FOR A WRIT OF KALIKASAN – heading as advised by counsel]
[Date]

Petitioners: [names / people's organisation], on their own behalf and in representation of the residents of [places] and generations yet unborn.

Respondents: [the DENR-EMB / the proponent / the LGU / the agency].

1. The constitutional right invoked: the right to a balanced and healthful ecology.
2. The environmental damage: [describe – magnitude spanning [cities/provinces]].
3. The unlawful acts/omissions:
 - Ground 1 – [operating on an EXPIRED ECC].
 - Ground 2 – [NO valid FPIC / no NCIP Certificate of Precondition].
 - Ground 3 – [no sanggunian approval / defective consultation / protected area].
4. Reliefs: a TEPO and, in judgment, a cease-and-desist, rehabilitation, and continuing mandamus.

[Name / counsel] – [contact]

8G. Press release (effective)

FOR IMMEDIATE RELEASE

[HEADLINE: make it NEWS, not opinion]
[Subtitle: consequence + timeliness]

[DATELINE: Place / Date]

[LEAD – answer "why now?"]
[Local organisation] released [study / FOI documents / the community's recorded position] today showing [specific finding] affecting [# of people / hectares / an Indigenous community].

KEY FINDINGS

• [Quantified impact with citation]

• [Quantified impact with citation]

• [Quantified impact with citation]

[DIRECT QUOTE – specific, from a credible voice, not a slogan]

"[What the finding means]," said [Name, Title].

[CONTEXT – why it matters; reference a documented case where relevant]

[DECISION POINT – create urgency]

[The DENR-EMB / the sanggunian] decides on [date].

[CALL TO ACTION] To support or file an objection: [how].

For more: [contact].

CONTACT: [Name / Organisation / Phone / Email]

ATTACHMENTS: full report, FOI documents, the community's recorded position, maps, Q&A

8H. Legal strategy decision tree

See Step 4 for the full decision tree — Tracks 1-3, the routing between the writ of kalikasan, continuing mandamus, and the citizen suit, the SLAPP defence, the FPIC/ECC/sanggunian levers, and the budget branches.

SECTION 9: WHEN THE SYSTEM IS TILTED TOWARD APPROVAL (HONEST MECHANICS)

What this means. A system is **tilted toward approval** when the bodies that decide on a project lean, in practice, toward approving it — because the government is pushing investment and jobs, because the proponent's own consultant writes the impact study, or because clearances are rarely refused. It rarely means anyone broke the law. Here is how the tilt works — and how communities win anyway.

Important Caveat

This section describes patterns from documented Philippine dynamics and public policy — "flagship project" backing, proponent-funded **EIS** studies, rarely-refused ECCs, projects that begin before their permits, and FPIC processes criticised as manipulable. It is not a statistical claim about "X% of all decisions." Read it as: "where these patterns appear, here is what happens and what it means for opposition."

What This Tilt DOES (and DOESN'T DO)

DOES: create financial and political incentive to approve (jobs, revenue, mining **royalties**, "flagship project" status); bias information (the **EIS** is commissioned by the proponent, and reads optimistically); advantage well-resourced proponents (better consultants, lawyers, appeals); and let projects begin work before the **ECC** or genuine **FPIC**, presenting a *fait accompli*.
DOESN'T: guarantee approval; make opposition impossible; remove the community's **FPIC** power on an ancestral domain; remove the **sanggunian's** approval role; or take away the **writ of kalikasan**, the **citizen suit**, or the **precautionary principle**.

Analogy: a tilted system is like playing on a pitch sloped against you. It makes winning harder, not impossible — so your strategy has to be sharper and more visible, your legal grounds cleaner, and your **FOI** paper trail solid.

Documented Philippine Dynamics

Consent and paperwork can stop a project (Brooke's Point). Despite backing for the mine, it was halted when the community documented an **expired ECC** and a **missing FPIC/precondition** and took it to the Supreme Court. **Lesson:** even a well-backed project can fall on a permit gap the community proves.

Projects that start before the permits. Proponents have begun work before securing the **ECC** — as opponents alleged of a major airport project — betting that a half-built project is hard to stop. **Lesson:** a project working ahead of its permits is not stronger; it is legally exposed. Document it, and use it.

The impact study is the proponent's. Because the **EIS** is prepared by the proponent's accredited consultant, it tends to read in the project's favour. **FOI** disclosures and independent survey work that contradict it are powerful.

FPIC can be manipulated. The **FPIC** process has been criticised where "consent" was obtained by dividing a community or dealing with unrepresentative leaders. **Lesson:** insist the process is genuine and collective, and record any refusal properly.

Assessment Framework — Determine Your Situation

GREEN FLAG (low tilt): an ordinary ECC with genuine scrutiny; no "flagship" label; a clear legal defect; an ancestral domain engaged (giving the community FPIC). → 65-75% with all 5 steps. Proceed with standard opposition.

YELLOW FLAG (moderate tilt): strong pro-investment push and a proponent-funded **EIS**, but independent evidence is possible and a legal ground (FPIC, ECC, consultation, sanggunian) is arguable. → 40-45% with all 5 steps; often win conditions and delay even if not a refusal. Proceed; prioritise the FPIC and the permit/consultation defects.

RED FLAG (high tilt): a national "flagship" project, proponent-only studies, heavy political backing, and works already begun. → 25-30% to stop; 50-60% to modify/delay. Decide whether delay/conditions justify the investment; lead with the cleanest ground (FPIC, an expired ECC); build power and a record for the next round.

Direct Action and Defender Safety: Factual Information (Descriptive, Not Prescriptive)

When clearance and legal routes are exhausted, some Philippine communities have used non-violent direct action — pickets, barricades, and rallies. This is descriptive of what has occurred, not guidance, and in the Philippines it comes with a grave safety warning.

The Philippines is one of the most dangerous countries in the world — and, for over a decade, the deadliest in Asia — for land and environmental defenders. According to the watchdog Global Witness, the country has recorded the highest toll of killings and disappearances of defenders in Asia every year since 2012, with a large share linked to mining and other extractive industries; Indigenous leaders are disproportionately targeted. A specific and documented danger is **"red-tagging"** — publicly branding activists, Indigenous leaders, or organisations as communist or terrorist fronts — which the Commission on Human Rights has described as a systematic attack on defenders and which has preceded harassment, criminalisation, abduction, and killings.

Anyone considering direct action — or even visible organising in a high-conflict area, especially over mining or on Indigenous land — should take the physical and legal risk with the utmost seriousness: don't act alone; keep actions non-violent, lawful, and well-documented; line up **legal support** in advance and use the **SLAPP** defence if you are sued to be silenced; keep decisions transparent and collective so a proponent cannot co-opt or split the community; and stay connected to the **Commission on Human Rights**, human-rights organisations, church networks, and the press — visibility is a measure of protection. If you are red-tagged or threatened, treat it as a safety emergency: report it, document it, tell your networks, and seek protection. Direct action has produced delay and attention in documented cases, but on its own rarely stops a project permanently; combined with documentation, FPIC, the courts, and media, it is more consequential — and safer.

Honest Assessment

Where the system is tilted, opposition using clearance and legal methods has lower odds of an outright stop — but still reliably wins protection orders or conditions, forces delay (often long), imposes political cost, builds durable community power, and creates a record for the courts. And the Philippines offers genuine equalisers: the **writ of kalikasan** (no filing fees, filed straight to the high courts), the **citizen suit** that anyone can bring for present and future generations, the **continuing mandamus** that holds agencies to a ruling, the **SLAPP** shield, the community's **FPIC** power, and the **precautionary principle** that tilts doubt toward the environment. Neither scenario makes opposition futile.

SECTION 10: WHEN IT'S ACTUAL CORRUPTION (AND HOW TO EXPOSE IT)

Section 9 covered a system **tilted toward approval** — pressures that are usually lawful. This section covers something narrower and more serious: **actual corruption** — the unlawful or unethical use of a public position for private benefit, or improper influence over a decision. It is rarer than ordinary bias, but where it exists it is both a wrong worth exposing and, strategically, a project's single greatest vulnerability. The Philippines has strong bodies to receive these matters — but handle them carefully, because getting the facts wrong exposes you to a criminal-libel case.

What counts as corruption (a spectrum from illegal to merely unethical)

- **Bribery and graft** (offences under the **Anti-Graft and Corrupt Practices Act, RA 3019**) — money, jobs, or favours in exchange for an ECC, an FPIC "certification," or a favourable decision, or a public officer abusing office for gain.
- **Plunder** (RA 7080) — the large-scale amassing of ill-gotten wealth by public officers. The country's largest scandals — such as the **"pork barrel" (PDAF) scam**, exposed with the help of a whistleblower and a **Commission on Audit** special audit — led the Supreme Court to strike down the fund as unconstitutional and produced plunder cases at the **Sandiganbayan**. This is the reference point for how public money and decisions can be captured for private gain.
- **Undisclosed conflicts of interest** — a decision-maker with a hidden stake (land near the site, an interest in the proponent, a family tie) who does not step aside.
- **The revolving door** — officials and the proponent's staff or consultants moving between each other.
- **Improper gifts, hospitality, or campaign funding** flowing from a proponent to the people deciding its project.
- **Falsified or manipulated studies and FPIC** — an **EIS** with fabricated data, or a "consent" obtained by fraud or by dealing with unrepresentative leaders.
- **Insider land dealing** — acquiring affected land using non-public knowledge of a coming ECC or land-use change.

Red flags to watch for

- An ECC or FPIC certification granted despite officials' or the community's clear objection, with thin or shifting reasons.
- Sudden reversals, rushed timelines, or a clearance pushed through quietly.
- An official who did not step aside despite a personal interest.
- Off-record meetings between the proponent and decision-makers.
- Gifts, hospitality, trips, or campaign donations flowing from the proponent to decision-makers or their families.
- A decision-maker — or a relative — owning affected land or an interest in the proponent.
- The same small circle of firms, consultants, and officials recurring across clearances.
- Records "missing," or requests refused under **FOI**.
- A dramatic, unexplained jump in an official's **Statement of Assets, Liabilities and Net Worth (SALN)**.

How to document and investigate it (follow the money — carefully)

- **FOI requests** for correspondence, minutes, contracts, and the ECC/FPIC file.
- **The Commission on Audit's reports** on the agency or project.
- **SALNs** — public officials' asset declarations, which can reveal unexplained wealth.
- **Company and land records** — who owns the affected land and who profits; SEC filings.
- **Campaign-finance records** — check whether the proponent funded decision-makers.
- **Minutes and technical opinions** — compare the decision to the officials' recommendation.
- **Build a timeline:** interest or donation → meeting, gift, or contract → decision. Corruption is almost always shown by **pattern and timing**, not a confession.
- **Whistleblowers** often break these stories — but protect their identities and use the protections available (the Witness Protection Program), and be aware that in the Philippines exposing powerful interests carries real danger.

The legal lever: a tainted or arbitrary decision can be undone

Two features make this powerful. First, a clearance granted through a process tainted by graft, fraud, or **grave abuse of discretion** can be **set aside** by the courts — and a **writ of kalikasan** or **citizen suit** can incorporate that unlawfulness — without any need to secure a criminal conviction first. Second, the offences under **RA 3019** and the **plunder** law can be pursued by the **Ombudsman** before the **Sandiganbayan**. So documenting a tainted process can be both a **ground to undo the clearance** and a matter for the anti-corruption bodies.

Where to report it

- The **Office of the Ombudsman** — investigates and prosecutes graft and corruption by public officers, and files cases at the Sandiganbayan.
- The **Sandiganbayan** — the anti-graft court that tries these cases.
- The **Commission on Audit (COA)** — for audit findings and irregular spending.
- The **Commission on Human Rights** — where the corruption is tied to attacks on defenders.
- **Investigative outlets** (such as the PCIJ) — in parallel with the official channels.

Strategy: exposing a tainted process can beat a project

A credible, documented corruption story does several things at once: it triggers an investigation; it can get the clearance set aside; it flips media coverage from "local dispute" to "scandal"; it splits the political support behind the project; and it damages the proponent's reputation and financing. **Exposing a tainted process is often more powerful than arguing inside it** — the pork-barrel revelations reshaped the politics of accountability nationally.

Do this responsibly — and safely

- **Stick to documented facts.** Publish the records and the timeline and let readers draw conclusions; frame anything unproven as a question, not an accusation.
- **Mind criminal libel.** Publicly accusing a named person of a crime you cannot prove is legally dangerous in the Philippines, which has **criminal libel and cyber-libel**. Work with a lawyer and an experienced journalist before publishing allegations.
- **Report through the Ombudsman / COA / the courts in parallel** with any media, so there is a formal record and an investigation can follow.
- **Protect whistleblowers and yourself.** The danger is real; use the Witness Protection Program where possible, keep identities confidential, and stay connected to legal and human-rights networks.
- **Don't cry "corruption" without evidence.** Calling ordinary, lawful bias (Section 9) "corruption" destroys your credibility and can expose you to a libel case. Keep the two separate — which is exactly why they are separate sections here.

INTEGRATION: HOW ALL FIVE STEPS WORK TOGETHER

Realistic 12-Month Campaign Timeline

Months 1-2 — Foundation + Documentation: identify the target and decision-maker (Step 1); begin baseline surveys, map ancestral domain and land use, and check the proponent's permits (Step 2); convene the community and form or partner with a registered PO (Step 3); file first **FOI** requests, prepare for the **public consultation** and the **FPIC** process, and make first reporter contacts (Steps 4-5). *Outcome:* structure forming, the record and paper trail beginning.

Months 2-3 — Public Launch: baseline complete; community assembly + objections at the public consultation + **FPIC record / resolutions** (Steps 3-4); media event (Step 5). *Outcome:* opposition visible, objections and resolutions on the record, 3-5 stories.

Months 3-4 — Coalition + Impact Analysis: complete impact analysis testing the **EIS** and the permits (Step 2); expand the coalition and bring in a law group and an Indigenous organisation (Step 3); prepare the **writ of kalikasan / citizen suit** grounds (Step 4); data-release press event (Step 5). *Outcome:* broad coalition, legal grounds identified, coverage expanding.

Months 4-6 — Expansion + Health Data: health/livelihood report (Step 2); sustained rallies (Step 3); the ECC decision (Step 4); expert press events (Step 5). *Outcome:* possible denial or strict conditions, quantified impacts, regional media.

Months 6-9 — Escalation + Challenge: rallies escalating (Step 3); file the **writ of kalikasan** (with a TEPO application) or a **citizen suit** (Step 4); ongoing monthly media (Step 5). *Outcome:* sustained pressure, case live.

Months 9-12 — Peak Pressure + Positioning: maintain opposition (Step 3); hearing / positioning, and **continuing mandamus** to hold agencies to any ruling (Step 4); media momentum (Step 5). *Outcome:* clearance + opposition + media + law compound; a halt, conditions, or the project shelved.

Key Principles (What Separates Winning Campaigns from Losing Ones)

1. **Specificity** — "the company operated on an expired ECC without FPIC," not "we oppose the project."
2. **Multi-tactic pressure** — objections + FPIC record + resolutions + opposition + media + legal, together.
3. **Long-term organising** — sustain 12+ months; prevent burnout; keep people safe.
4. **Documentation first** — build the evidence (including who lives there and the permit status), then object and litigate on it.
5. **Coalition building** — 5-10 diverse groups; respect Indigenous communities' own processes and guard against co-option.
6. **Use FPIC, the writ, and FOI** — the consent power, the special remedies, and the paper trail are distinctively strong Philippine levers.
7. **Match the remedy to the facts** — writ of kalikasan for wide harm; continuing mandamus for a neglected duty; citizen suit for a local violation; SLAPP as a shield.
8. **Realistic expectations** — expect conditions/modifications/delay; a denial or halt is the bonus; expect works-ahead-of-permits and possible resumption after a cured defect.
9. **Persistence and safety** — plan for 12-24 months (and possibly several forums), keep momentum, and protect organisers and whistleblowers.

Warning Signs — Act Early

Watch for these and respond fast: attendance declining around months 4-5 (burnout); coalition members leaving or being co-opted; no media coverage for 2-3 months; the case stalling or a ruling going unimplemented; fundraising below half your target by month 6; a core organiser leaving without a successor; **red-tagging, threats, or intimidation** against organisers (treat as a safety emergency — see Section 9); or someone new pushing illegal or reckless tactics. Each has a fix earlier in this guide — catch it early and the campaign holds.

FINAL ASSESSMENT: OUTCOMES & WHEN TO REASSESS

Real Outcomes: What Winning Looks Like

- **ECC denied / project halted** (rarer): usually needs overwhelming opposition + a strong FPIC or permit case + heavy media + lower tilt. Brooke's Point (mine halted by a writ of kalikasan) shows it happens.
- **Clearance modified** (most common victory): strict conditions, genuine relocation and compensation, buffers, independent monitoring, redesign — often via the DENR-EMB or a court.
- **Delay / attrition:** stalled for years while the ECC, FPIC, and litigation run; costs mount and financiers lose confidence; the proponent sometimes walks away.
- **Defeat:** the project proceeds (sometimes after a cured defect or a renewed ECC). Focus then shifts to enforcing conditions and rehabilitation, monitoring compliance, and the next opening.

Decision Point: Continue, Modify, or Reassess

Continue if the legal grounds are live and correctly matched, the FPIC and FOI record is strong, opposition is holding or growing, media is at least monthly, the coalition is stable, and organisers are safe.

Modify if attendance is falling, coverage has dropped for 2+ months, coalition members are leaving, the legal position has weakened, or you discover the system is more tilted than assessed.

Reassess if, after ~12 months (and perhaps a writ and a citizen suit) clearance and legal options are exhausted, the decision looks settled despite real effort, the community is exhausted, or resources are gone — or if the personal or legal risk to organisers has become unacceptable. Ask: has opposition already won partial victory (conditions, relocation, delay)? Would more effort win more, or just prolong the fight? Should energy shift to enforcing conditions, to the next project, or to changing the policy?

The Bottom Line

Opposition work can stop or significantly modify destructive projects in the Philippines — even where investment, **royalties**, and "flagship project" politics point toward approval. Opposition creates multiple, compounding forms of pressure: on the record, politically, in the press, and in the courts. Where the system is tilted, an outright stop is less likely, but opposition still delivers protection orders, conditions, relocation, delay, and durable power.

And the Philippines offers genuine equalisers found in few other systems: the **writ of kalikasan**, filed straight to the high courts with no filing fees; the **citizen suit** that any Filipino can bring, even for generations yet unborn; the **writ of continuing mandamus** that keeps agencies under the court's eye; the **SLAPP** shield against lawsuits meant to silence you; the community's **FPIC** power over ancestral domains; the **precautionary principle** that leans toward the environment in doubt; and, when a project truly cannot lawfully proceed, the possibility of a court-ordered halt, as at Brooke's Point.

Know your situation. Assess how tilted the system is, honestly. Watch for genuine corruption and refer it to the anti-corruption bodies. Keep organisers and whistleblowers safe — the danger here is real. Choose your strategy accordingly. Then organise — with eyes open to both the possibilities and the barriers.

RESOURCES (verified)

Legal help and the special remedies:

- Public-interest environmental law groups — the **Environmental Legal Assistance Center (ELAC)** and the **Legal Rights and Natural Resources Center (LRC-KSK)** — and the **Integrated Bar of the Philippines**, which provides pro bono counsel.
- The **writ of kalikasan** and **writ of continuing mandamus** — filed with the **Supreme Court** or the **Court of Appeals** (no filing fees for the writ of kalikasan); the **citizen suit** in the trial courts.

Find and track the project:

- The **EIS** and **ECC** via the **DENR-EMB**; the **FPIC** and **Certificate of Precondition** via the **NCIP**; the approval via the **sanggunian**.

Transparency: the **Freedom of Information** program (**E.O. No. 2, s. 2016**) — request records from executive agencies, including via the eFOI portal (*foi.gov.ph*). (A comprehensive FOI law is still pending in Congress.)

Integrity and anti-corruption: the **Office of the Ombudsman** (*ombudsman.gov.ph*); the **Sandiganbayan**; the **Commission on Audit** (*coa.gov.ph*).

Rights and safety: the **Commission on Human Rights** (*chr.gov.ph*); human-rights and church networks that support defenders; report threats and red-tagging, document them, and seek protection. Environmental violations can be reported to the **DENR**.

Environmental and accountability media: the *Philippine Daily Inquirer*; *Rappler*; the **Philippine Center for Investigative Journalism (PCIJ)**; **Mongabay-Philippines**; *ABS-CBN* and *GMA*; *Bulatlat*; and community and church radio.

Nothing here is legal advice. The environmental, mining, and Indigenous-rights rules are amended from time to time, and deadlines and procedures vary — get current advice from an environmental lawyer or a public-interest law group before relying on this.

GLOSSARY

Terms are listed alphabetically. Words shown in **bold** in the guide are the ones defined here.

- **Ancestral domain:** the land and resources held by Indigenous Cultural Communities / Indigenous Peoples under the IPRA; projects affecting it require FPIC.
- **Barangay:** the smallest local-government unit; its council can pass resolutions that carry political weight.
- **Certificate of Non-Coverage (CNC):** a DENR-EMB certificate that a project is not covered by the ECC requirement.
- **Certificate of Precondition:** the NCIP certification, issued only after genuine FPIC, that an agency needs before it may grant a permit for a project on an ancestral domain.
- **Citizen suit:** an action any Filipino may file to enforce environmental laws, "in representation of others, including minors or generations yet unborn" — liberalised standing.
- **Commission on Audit (COA):** the constitutional auditor of government, whose reports have exposed major scandals.
- **Continuing mandamus (writ of):** a court order compelling an agency to perform a neglected duty, keeping the case under the court's supervision until it is done.
- **DENR-EMB:** the Department of Environment and Natural Resources — Environmental Management Bureau, which issues the ECC.
- **ECC (Environmental Compliance Certificate):** the approval a significant project needs, under PD 1586, before it can be built or operated.

- **EIS (Environmental Impact Statement):** the study of a project's environmental impacts and alternatives, prepared by the proponent's accredited consultant.
- **Environmentally Critical Project / Area:** categories of project or location for which a full EIS and ECC are required.
- **FOI (Freedom of Information):** the transparency program (E.O. No. 2, s. 2016) for requesting records from executive agencies; a comprehensive law is still pending.
- **FPIC (Free, Prior and Informed Consent):** the consent an affected Indigenous community must give, free of manipulation and before the project, under the IPRA.
- **Grave abuse of discretion:** an arbitrary or capricious exercise of power that a court can strike down.
- **IPRA (Indigenous Peoples' Rights Act, RA 8371):** recognises ancestral domains and requires FPIC.
- **LGU (local government unit) / sanggunian:** the province, city, municipality, and barangay, and their councils; the sanggunian's approval is required for covered projects.
- **NCIP:** the National Commission on Indigenous Peoples, which runs the FPIC process and issues the Certificate of Precondition.
- **Ombudsman / Sandiganbayan:** the office that investigates and prosecutes graft, and the anti-graft court that tries it.
- **PD 1586:** Presidential Decree 1586, which established the Philippine Environmental Impact Statement System and the ECC.
- **Plunder (RA 7080):** the offence of a public officer amassing large-scale ill-gotten wealth.
- **Precautionary principle:** the rule that, where there is scientific doubt about serious or irreversible environmental harm, courts lean toward protecting the environment.
- **Protected area (NIPAS / ENIPAS):** a legally protected natural area; projects there need the management board's clearance.
- **RA 3019 (Anti-Graft and Corrupt Practices Act):** the main anti-graft statute for public officers.
- **Red-tagging:** publicly branding activists or organisations as communist or terrorist fronts — a documented precursor to harassment and violence against defenders.
- **Royalties:** payments to government from mining and resources, creating a financial incentive to approve.
- **SALN (Statement of Assets, Liabilities and Net Worth):** the asset declaration public officials must file annually; unexplained jumps can signal corruption.
- **SLAPP (Strategic Lawsuit Against Public Participation):** a lawsuit filed to harass or silence environmental advocacy; Philippine rules let you plead it as a defence and have the case dismissed.
- **A system tilted toward approval:** the situation where the bodies deciding on a project lean toward approving it — because of the push for investment, because the proponent's own consultant writes the impact study, or because clearances are rarely refused — usually without anyone breaking the law.
- **TEPO (Temporary Environmental Protection Order):** an urgent order a court can issue to halt environmental harm while a case proceeds.
- **Writ of kalikasan:** a special remedy, filed directly with the Supreme Court or Court of Appeals with no filing fees, for environmental damage of a magnitude affecting inhabitants of two or more cities or provinces.